

25STCV28673 25STCV28673

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Case Number: 25STCV28673 Hearing Date: June 25, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: June

25, 2026

CASE NAME: Meredith

Elguira v. The City of South Gate, et al.

CASE NO.: 25STCV28673

DEMURRER

TO COMPLAINT

MOVING PARTY: Defendants

The City of South Gate, Rob Houston, and Jon Hamilton

RESPONDING PARTY(S): Plaintiff Meredith Elguira

REQUESTED RELIEF:

1. Demurrer

to the second, third, fourth, fifth, and sixth causes of action as well as the request for punitive damages for failing to state sufficient facts to constitute a cause of action.[1]

TENTATIVE RULING:

1. Demurrer

to the second cause of action is OVERRULED as to South Gate and SUSTAINED with leave to amend as to Houston and Hamilton;

2. Demurrers

to the third, fourth, fifth, and sixth causes of action are SUSTAINED with leave to amend;

3. Plaintiff

shall file her first amended complaint within 21 days of this ruling.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On September 30, 2025, Plaintiff Meredith Elguira (Plaintiff) filed a complaint against Defendants The City of South Gate (South Gate), Rob Houston (Houston), and Jon Hamilton (Hamilton) (sometimes collectively Defendants) with six causes of action for: (1) retaliation in violation of FEHA; (2) whistleblower retaliation in violation of Lab. Code § 1102.5; (3) discrimination in violation of the FEHA; (4) hostile work environment harassment in violation of the FEHA; (5) failure to prevent discrimination, or retaliation in violation of FEHA; and (6) intentional infliction of emotional distress.

According to the complaint, South Gate terminated Plaintiff, the Director of Community Development, after she reported unlawful conduct, including a Section 8 conflict-of-interest scheme involving employees who concealed and mishandled HUD-related documents, and after she repeatedly pushed leadership to respond truthfully to HUD inquiries. She also faced escalating retaliation, including false performance criticisms, sham grievances, isolation from the City Council, and a pretextual PIP, culminating in her termination—during which the City Manager admitted she was being fired because of her complaints. In addition, Plaintiff alleges she was subjected to a hostile environment marked by racial and religious intimidation, such as crucifixes placed on her door, which leadership refused to investigate.

On May 6, 2026, Defendants filed the instant demurrer. On June 11, 2026, Plaintiff filed an opposition. On June 17, 2026, Defendants filed a reply.

LEGAL STANDARD:

Meet and Confer

Prior to filing a demurrer, the demurring party is required to satisfy their meet and confer obligations pursuant to Code of Civ. Proc. §430.41, and demonstrate that they so satisfied their meet and confer obligation by submitting a declaration pursuant to Code of Civ. Proc. §430.41(a)(2) & (3). ¶ The meet and confer requirement also applies to motions to strike. (CCP § 435.5.) ¶ Here, the parties met and conferred via telephone sometime after February 10, 2026. (Declaration of Kaitlyn Chang Decl. ¶ 4.) This requirement is therefore met.

Demurrer –

Sufficiency of Facts

A demurrer for sufficiency tests whether the complaint states a cause of action. ¶ (Hahn v. Mirda ¶ (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. ¶ In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. ¶ (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) ¶ “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” ¶ (Hahn ¶ 147 Cal.App.4th at 747.) ¶ ¶

¶

When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) Courts also consider exhibits attached to the complaint and incorporated by reference. (See Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94 (Frantz).) ¶

ANALYSIS:

Second Cause of

Action – Whistleblower Retaliation (Lab. Code § 1102.5) [Against All Defendants]

Defendants contend this claim fails to plead which complaints and investigations allegedly lead to her termination and also did not plead specific retaliatory acts by the individual defendants.

Plaintiffs argue that she sufficiently alleged this claim by making complaints throughout her employment, she was subjected to retaliatory adverse employment action, and there was a causal link based on temporal proximity. Anything else, they add, is inappropriate for the demurrer stage (including more particular facts about the individual defendants).

Defendants reply that the complaint does not allege temporal proximity because she alleges almost one year between the reporting and her termination.

Labor Code section 1102.5, subdivision (b) provides:

“An employer, or any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance, or for providing information to, or testifying before, any public body conducting an investigation, hearing, or inquiry, if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties.”^{1 2 3 4}

The plaintiff must show: (1) she engaged in a protected activity, (2) her employer subjected her to an adverse employment action, and (3) there is a causal link between the two. (McVeigh v. Recology San Francisco (2013) 213 Cal.App.4th 443, 468.)

This “reflects the broad public policy interest in encouraging workplace whistle-blowers to report unlawful acts without fearing retaliation.” (Contreras v. Green Thumb

Produce, Inc. (2025) 116 Cal.App.5th 1251, 1259.) This section applies when the disclosing employee “has reasonable cause to believe that the information discloses a legal violation.” (Ibid. [internal brackets omitted].) Therefore, what matters is whether the employee “reasonably believed that there was a violation” rather than an actual violation. (Id. at p. 1260.) This is an objective reasonableness standard. (Ibid.)

Here, Plaintiff sufficiently stated this claim, in part.

First, Plaintiff alleges she made protected disclosures by complaining to South Gate’s HR director, Hamilton, about an unlawful Section 8 landlord practice. (Compl. ¶ 19.) Second, she alleges she was terminated on November 21, 2024 in retaliation for her complaints. (Compl. ¶ 10.) Third, there is a causal link (for the pleadings stage) because Plaintiff alleges a series of negative actions (reprimands, false performance ratings, etc.) between her reporting and her termination.[2] (Compl. ¶¶ 30, 35, 37, 39, 40, 41.)

However, this goes to South Gate, not to the individual defendants. Plaintiff has not alleged any facts supporting liability for the individual defendants outside of their corporate roles.

Accordingly, the court OVERRULES the demurrer as to South Gate and SUSTAINS the demurrer as to Houston and Hamilton.

Third Cause of
Action – Discrimination in Violation of FEHA [Against South Gate Only]

Defendants contend this claim fails because Plaintiff did not allege any adverse employment action substantially motivated by her religion, race, color, national origin, and/or ancestry.

Plaintiff argues that she alleged she was subjected to discrimination and harassment based on religion, race, color, ancestry, and national origin.

Defendants reply that Plaintiff still failed to identify the specific protected characteristic allegedly motivating the adverse employment action.

After reviewing the complaint, Plaintiff insufficiently

stated her claim. Of the facts plead, Plaintiff appears to seek discrimination based on religion.[3]

(Compl. ¶ 60.) The incident involved unknown persons placing crucifixes on her and a coworker's office doors, reporting the incident HR, and being ignored.

(Compl. ¶¶ 24-26.) However, Plaintiff did not identify which adverse employment action occurred due to this discrimination.

Accordingly, the court SUSTAINS Defendants' demurrer to the third cause of action.

Fourth Cause of Action – Hostile Work Environment in Violation of FEHA [Against All Defendants]

Defendants contend this claim fails because Plaintiff failed to allege facts showing severe and pervasive conduct.

Plaintiff argues that a single incident (placing crucifix on her door) can be sufficient if it unreasonably interfered with her performance or created an intimidating, hostile, or offensive working environment.

Defendants reiterate their arguments on reply.

A hostile work environment is a recognized form of harassment. To establish a hostile work environment, harassment must be so severe or pervasive as to alter the conditions of the victim's employment and create an abusive working environment based on the protected characteristic. (See *Hughes v. Pair* (2009) 46 Cal.4th 1045, 1043.) Harassment must be of a repeated, routine, or generalized nature when the harassing conduct is not severe. (See *Lyle v. Warner Bros. Television Productions* (2006) 38 Cal.4th 264, 283.) Harassment that is occasional, isolated or sporadic is insufficient. (See *ibid.*)

Courts evaluate the "totality of the circumstances" in the work environment to evaluate whether a work environment is perceived as hostile or abusive. (*Bailey v. San Francisco Dist. Attorney's Office* (2024) 16 Cal.5th 611, 628 (*Bailey*)). This includes: "[T]he frequency of the discriminatory conduct; its severity; whether it is physically threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee's work performance." (*Ibid.* [citations

omitted]) “Simple teasing, offhand comments, and isolated incidents (unless extremely serious), are not sufficient to create an actionable claim of harassment.” (Ibid. [citations omitted]) Courts judge the objective severity of the harassment “from the perspective of a reasonable person in the plaintiff’s position.” (Id. at p. 629.) Indeed, “although viable hostile work environment claims often involve repeated conduct, it is not required.” (Bailey, supra, 16 Cal.5th at p. 629.)

For similar reasons articulated in the third cause of action, the court SUSTAINS Defendants’ demurrer to the fourth cause of action.

Fifth Cause of

Action – Failure to Prevent Discrimination, Harassment, or Retaliation in Violation of FEHA [Against South Gate Only]

Defendants contend this claim is derivative of previous failed claims, so it fails, too.

Plaintiff argues that the aforementioned claims survive, so this one does, too.

Defendants reiterate their arguments on reply.

The court agrees with Defendants because the prior allegations are insufficiently plead.

Accordingly, the court SUSTAINS Defendants’ demurrer to the fifth cause of action.

Sixth Cause of

Action – Intentional Infliction of Emotional Distress (IIED) [Against Houston & Hamilton Only]

Defendants contend that this claim is barred under exclusive Workers’ Compensation law and otherwise failed to sufficiently allege extreme and outrageous conduct.

Plaintiff argues the claim is not barred because she alleged conduct outside the scope of the employment and otherwise sufficiently stated this claim.

Defendants reiterate their arguments on reply.

The elements of an intentional infliction of emotional distress (IIED) cause of action are: (1) extreme and outrageous conduct by the defendant; (2) intention to cause or reckless disregard of the probability of causing emotional distress; (3) severe emotional suffering; and (4) actual and proximate causation of the emotional distress. (See *Moncada v. West Coast Quartz Corp.* (2013) 221 Cal.App.4th 768, 780.) To satisfy the element of extreme and outrageous conduct, defendant's conduct "must be so extreme as to exceed all bounds of that usually tolerated in a civilized society." (Ibid.) (internal citations omitted.)

"Where the provisions of the workers' compensation system apply, an employer is liable without regard to negligence for any injury sustained by its employees arising out of and in the course of their employment. (citation) The employee, in turn, is generally prohibited from pursuing any tort remedies against the employer or its agents that would otherwise apply. (citation)" (*Light v. Department of Parks & Recreation* (2017) 14 Cal.App.5th 75, 96.)

Here, Plaintiff insufficiently stated her claim for IIED. Notably, she did not allege extreme and outrageous conduct. Instead, she alleged personnel management decisions that are not extreme and outrageous as a matter of law. (See, e.g., *Cornell v. Berkeley Tennis Club* (2017) 18 Cal.App.5th 908, 945-946 [affirming summary judgment of IIED claim for failing to show extreme and outrageous conduct by supervisor's inappropriate comments]; *Miklosy v. Regents of University of California* (44 Cal.4th 876, 902 [discipline and criticism insufficient on demurrer for IIED claim]; but see *Light v. Department of Park & Recreation* (2017) 14 Cal.App.5th 75, 101 ["unlawful discrimination and retaliation in violation of FEHA falls outside the compensation bargain and therefore claims of [IIED] based on such discrimination and retaliation are not subject to workers' compensation exclusivity."])

Defendants' reliance on *Cole* v. Fair Oaks Fire Protection Dist. (1987) 43 Cal. 3d 148 (*Cole*) is well taken. There, the Plaintiff suffered from a physical injury due to repeated harassing conduct during the employment relationship. (Id. at p. 152-153.) After extensive review of the statutory scheme behind Workers'

Compensation law, the Court reasoned that the plaintiff had not alleged conduct by the employer having a “questionable relationship to the employment,” or an injury occurring “while the employee was performing service incidental to the employment and which would not have been viewed as a risk of the employment,” or “conduct where the employer . . . stepped out of their proper roles.” (Id. at p. 161.) Plaintiff’s allegations of some harassment by supervisors, personality clashes, disciplinary hearings, etc. were all items that “can be expected to occur within the workplace” and so they were barred. (Ibid.)

So, too, here. To start, Plaintiff alleges the following conduct by Hamilton: “a nonsensical story involving the three wise men,” (Compl. ¶ 26.) The court is not convinced this sufficiently states a claim as to him.

Next, Plaintiff alleges the following conduct by Houston: stating “Why? Is it against your religion?” in response to her reporting the crucifix placed on her door; informing Plaintiff of his plan to return Montano from administrative leave; stating the City Council was displeased with her performance; presenting Plaintiff with grievances by Montana and other employees; prohibiting Plaintiff from speaking with City Council members; ignoring inquiries; placing Plaintiff on a performance improvement plan; and terminating Plaintiff. (Compl. ¶¶ 25, 29, 30, 32, 37, 38, 39, 40.) These allegations fall squarely within those articulated in Cole since they are personnel management actions.[4]

Accordingly, the court SUSTAINS Defendants’ demurrer to the sixth cause of action.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a

complaint is capable of cure, the court should allow leave to amend."].)

The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Here, leave to amend is warranted because the aforementioned defects are reasonably capable of curing.

Accordingly, the court GRANTS Plaintiff leave to amend.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Demurrer

to the second cause of action is OVERRULED as to South Gate and SUSTAINED with leave to amend as to Houston and Hamilton;

2. Demurrers

to the third, fourth, fifth, and sixth causes of action are SUSTAINED with leave to amend;

3. Plaintiff

shall file her first amended complaint within 21 days of this ruling.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: June 25, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

The court rejects Defendants' demurrer to the punitive damages claims as improper. Defendants are really seeking an order striking the allegations from the complaint. This is the purview of a motion to strike. (CCP § 436.)

[2]

The court agrees with Plaintiff that anything more is not appropriate for demurrer.

[3]

Most of the complaint is conclusory. The court is not persuaded that simply restating the elements of the claim sufficiently state the claim.

[4]

While Light discusses FEHA violations as falling outside the scope of the employment relationship, that is not what Plaintiff alleged. (Light, supra, 14 Cal.App.5th at p. 101.) What is more, two of Plaintiff's FEHA claims are currently insufficiently plead.